

20. 9:01 AM CASE NUMBER: C23-00655
CASE NAME: MICHAEL ROLANDELLI VS. CSAA INSURANCE EXCHANGE
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION AND DOCUMENTS OF
CSAA CLAIMS MANAGERS ZACHARY GORDON AND JENNIFER WOLF
FILED BY: ROLANDELLI, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Rolandelli ("Plaintiff") filed a Motion to Compel Further Deposition and Documents on September 30, 2025 (the "Motion to Compel"). The Motion to Compel was set for hearing on February 9, 2026. The motion is opposed.

Background

Plaintiff noticed the deposition of Zachary Gordon, the "National Homeowners Claims Executive" with defendant CSAA Insurance Exchange ("CSAA"). See Declaration of Nicholas J. Peterson filed September 30, 2026 ("Peterson Decl."), ¶3. Mr. Gordon appeared for his deposition and was examined on August 29, 2025. *Id.* at ¶15.

Plaintiff noticed the deposition of Jennifer Wolf, CSAA's "Claims Manager." *Id.* at ¶17. Ms. Wolf appeared for her deposition and was examined on September 4, 2025. *Id.* at ¶10.

The deposition notices served as to both witnesses contained document production requests. Plaintiff contends that both witnesses "admitted to failing to search or produce any documents for the majority of the requests." See Memorandum of Points and Authorities filed September 30, 2025 ("Plaintiff's MPA"), p. 5. Plaintiff seeks an order compelling production of the requested documents and an order for a further deposition of the witnesses.

An *ex parte* application to advance the hearing date on the Motion to Compel was brought and denied by the Court. See Order entered October 29, 2025.

Analysis

The Court need not address the merits of the Motion to Compel because the motion is untimely.

The deadline for the hearing of discovery motions (the "Discovery Motion Hearing Cutoff Date") is "on or before the 15th day, before the date initially set for the trial of the action." Code Civ. Proc. § 2024.020(a).

The pending motion was not heard on or before the Discovery Motion Hearing Cutoff Date. The initial trial setting was December 8, 2025. See Minute Order entered April 10, 2025. The 15th day before December 8, 2025 was Sunday, November 23, 2025. By operation of law, the Discovery Motion Hearing Cutoff Date would have extended to Monday, November 24, 2025. Code Civ. Proc. § 2016.060.

All motions concerning discovery under the Discovery Act must be heard on or before the statutory cutoff, irrespective of any continuance or postponements of the trial date unless an exception applies. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) ("CJER Civ. Pro.—Discovery"), § 8.6. Although a court has discretion to hear a discovery motion after the cutoff date, the exercise of that discretion is governed by Code of Civil Procedure section 2024.050. See *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568; see also CJER

Civ. Pro.—Discovery, § 8.9.

Code of Civil Procedure section 2024.050 provides: “[o]n motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.”

As noted above, Plaintiff’s *ex parte* application to advance the hearing date on the Motion to Compel was denied by the Court. See Order entered October 29, 2025. No further order was otherwise granted by the Court to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date.

Even if the Plaintiff had properly sought to reopen discovery or permit the hearing of this Motion to Compel beyond the Discovery Motion Hearing Cutoff Date to pursuant to Section 2024.050, the Court, in the exercise of its discretion would deny it.

The Court has already determined that Plaintiff was dilatory in seeking to bring the matter before the Court, including in light of the overall procedural posture of the case. See Order entered October 29, 2025, p. 2.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is DENIED.
2. The Court shall issue the order after hearing.

Courtroom Clerk’s session

21. 10:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
JURY TRIAL 7 DAYS
FILED BY:
TENTATIVE RULING:

Parties to Appear.

22. 1:30 PM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**
FILED BY: LEONE, MISTY
TENTATIVE RULING:

Defendant and cross-defendant Misty Leone (“Ms. Leone”) filed a Motion to Compel Court Receiver Dan Harkins’ Disclosure of The Receivership Estate’s Accounts and Records on September 3, 2025 (the